

TENTATIVE RULINGS for LAW and MOTION

May 19, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Clark v. Davis Joint Unified School District**
Case No. CV2025-2838

Hearing Date: **May 19, 2026** **Department Fourteen** **9:00 a.m.**

Demurrer

Plaintiff Dino Clark's ("plaintiff") opposition to defendant Davis Joint Unified School District's ("DJUSD") demurrer to plaintiff's complaint exceeds the 15-page limit set forth in California Rules of Court, rule 3.1113(d) without prior court approval. (See Cal. Rules of Court, rule 3.1113(d), (e).) Despite the foregoing, the Court will consider the entire opposition. (Cal. Rules of Court, rule 3.1113(g) [oversize brief to be treated as a late-filed brief]; Cal. Rules of Court, rule 3.1300(d) [court has discretion to consider a late filed paper]; *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 ["a trial court has broad discretion to accept or reject late-filed papers."].) However, in the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

The Court rules on DJUSD's demurrer as follows:

- DJUSD's demurrer to the first cause of action for discrimination based on race is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The first cause of action is not uncertain because DJUSD can reasonably respond. (Govt. Code § 12940, subd. (a); *United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4th 500, 506; see *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed."].)
- DJUSD's demurrer to the second cause of action for hostile work environment race harassment is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The second cause of action is not uncertain because DJUSD can reasonably respond. (Govt. Code § 12940, subd. (j); *United Western Medical Centers, supra*, 42 Cal.App.4th at p. 506; see *Khoury, supra*, 14 Cal.App.4th at p. 616.)
- DJUSD's demurrer to the third cause of action for failure to prevent discrimination and harassment is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) As plaintiff's first (discrimination) and second (harassment) claims are not uncertain, DJUSD has failed to show that plaintiff's third cause of action is uncertain. (Govt. Code § 12940, subd. (k); *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1021; see *Khoury, supra*, 14 Cal.App.4th at p. 616.)

The Court notes that DJUSD's amended notice of demurrer states that it demurs to plaintiff's complaint on the grounds that it fails to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10(e) and it is uncertain pursuant to Code of Civil Procedure section 430.10(f). (Amended Notice of Motion, p. 3 [filed 2/19/26].) However, because DJUSD's supporting memorandum of points and authorities only addresses uncertainty, the Court did not consider whether plaintiff's complaint fails to state facts sufficient to constitute a cause of action. (Cal. Rules of Court, rule 3.1113(b); see *Hood v. Gonzales*

(2019) 43 Cal.App.5th 57, 73–74, citing *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

The notice of demurrer does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike

DJUSD’s motion to strike portions of plaintiff’s complaint is **DENIED**. (Code Civ. Proc., § 435, 436.) The Court finds that while a motion to strike may be utilized to challenge a portion of a cause of action that violates the applicable statute of limitations, it does not clearly and affirmatively appear upon the face of plaintiff’s complaint that the challenged allegations are time-barred. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683; *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881 [“where the action may be, but is not necessarily barred.... It must appear clearly and affirmatively that, upon the face of the complaint, the right of action is necessarily barred...”]; see also *Doyle v. Fenster* (1996) 47 Cal.App.4th 1701, 1707.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Ge v. Wu**

Case No. CV2025-2807

Hearing Date: **May 19, 2026**

Department Eleven

9:00 a.m.

Plaintiffs William W. Ge, Helen H. Wu, Wei Li, Jiaoming Chen, Ken Cong Wu, and Zhen Dai's motion to compel further responses to special interrogatories and requests for admission (set one) is **DENIED**. (Code Civ. Proc., §§ 2030.300, 2033.290.) Plaintiffs failed to show "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, subd. (a), 2030.300, subd. (b)(1), 2033.290, subd. (b)(1).) Specifically, plaintiffs sent one meet and confer letter and failed to respond to defendants Zhong Wu and Nancy He Wu's meet and confer letter until the day that they filed this motion. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434-1435 & 1439 ["the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate"]; Tan decl., ¶¶ 6-8, Exhibit 4; Flaxman decl., ¶¶ 6-8, Exhibit B.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Juarez v. American Honda Motor Co., Inc.**
Case No. CV2024-3018

Hearing Date: **May 19, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Adam Luis Juarez’s motion for attorney fees, costs and expenses is **GRANTED IN PART**. (Civ. Code, § 1794, subd. (d).) For purposes of Civil Code section 1794(d), plaintiff is the prevailing party. (Youabian decl., ¶ 25, Exhibit 1, § 2 [“Defendant agrees that Plaintiff is the prevailing party”].) The Court finds the requested hourly rates for Mr. Youabian and Mr. Khorovsky’s work are reasonable. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 [“The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate.”]; *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682; Youabian decl., ¶¶ 7-13; Khorovsky decl., ¶¶ 4-8.) However, plaintiff only submitted evidence supporting Mr. Youabian and Mr. Khorovsky’s hourly rates. (See, e.g., Youabian decl.) Therefore, the Court declines to award attorneys’ fees for time incurred by individuals other than Mr. Youabian and Mr. Khorovsky. (See *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 [“The prevailing party and fee applicant bears ‘the burden of showing that the fees incurred were... reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount’], internal quotation marks omitted.) The Court finds that plaintiff has established the hours spent by Mr. Youabian and Mr. Khorovsky were reasonable. (See *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488; Youabian decl., ¶¶ 31-34, Exhibit 2; Khorovsky decl., ¶¶ 9-11.)

Further, the Court declines to impose an “across-the-board” 20 percent reduction. Defendant American Honda Motor Co., Inc. does not justify a 20 percent reduction as to all counsel’s billing entries. (*Mikhaeilpoor, supra*, 48 Cal.App.5th at pp. 248-250; Opposition, p. 3.)

Finally, plaintiff has shown that the requested costs were “reasonably incurred...in connection with the commencement and prosecution of” this action. (Civ. Code, § 1794, subd. (d); Youabian decl., ¶ 35, Exhibits 3-4.)

Therefore, the Court awards plaintiff **\$16,224.50** in attorneys’ fees and **\$737.82** in costs, totaling **\$16,962.32**.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Lopez v. Romero**
 Case No. CV2025-2998

Hearing Date: **May 19, 2026** **Department Fourteen** **9:00 a.m.**

On the Court’s own motion, plaintiffs Marina Cortez Lopez, Angel Tapia, Epigmenio Romero Mata, Eva Rubalcaba, and Maria Elena Lopez’s four motions to compel further responses (filed March 24, 2026) are **CONTINUED** to **July 21, 2026**, at 9:00 a.m. in Department Fourteen. The parties are **DIRECTED** to further meet and confer regarding the issues identified plaintiffs’ motions – in person, by videoconference, or by telephone – by June 12, 2026. (Code Civ. Proc., § 2016.040, subd. (a); see also *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1434-1435 & 1439; Tulekyan decls., ¶¶ 2-5, Exhibit C.)

By June 26, 2026, plaintiffs **MUST** file: (1) a new meet and confer declaration regarding the parties’ meet and confer efforts and any remaining issues for the Court’s determination; and (2) a separate statement regarding discovery still at issue. (See Cal. Rules of Court, rule 3.1345.)

By July 10, 2026, defendants Joaquin Romero, Jr. and La Fogata Canteen Club, LLC may file a responsive meet and confer declaration and separate statement.

If there are no remaining issues, plaintiffs are **DIRECTED** to request that the July 21, 2026, hearing be vacated.

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
Case No. CV2025-0929

Hearing Date: May 19, 2026 Department Eleven 9:00 a.m.

Plaintiff's motion to file second amended complaint

Plaintiff Nadir Malik's motion to file second amended complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (a)(1); Cal. Rules of Court, rule 3.1324.)

Plaintiff's moving and supporting papers were filed with the Court and electronically served on defendant Flagstar Bank, N.A. on April 28, 2026. (Plaintiff's Proof of Service, pp. 1-2 [filed 4/28/26].) All moving and supporting papers must be filed with the Court and a copy served on each party at least sixteen court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).)

The period of notice is extended by two court days for all moving and supporting papers served electronically and therefore, plaintiff's motion was untimely served on defendant. (Code Civ. Proc., §§ 1005, subd. (b), 1010.6, subd. (a)(3)(B).) The Court finds that the untimely service of plaintiff's moving and supporting papers on defendant prejudiced defendant's ability to prepare a substantive response. (Code Civ. Proc., §§ 1005, subd. (b), 1010.6, subd. (a)(3)(b); Cal. Rules of Court, rule 3.1300; *Rancho Mirage Country Club Homeowners Ass'n v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"]; Defendant's Opp., pp. 7-8.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Defendant's motion for judgment on the pleadings

On the Court's own motion, defendant's motion for judgment on the pleadings is **CONTINUED** to **June 18, 2026**, at 9:00 a.m. in Department Eleven. If plaintiff does not timely file and serve the motion to file a second amended complaint, the Court will rule on defendant's motion for judgment on the pleadings.